LLOYD WESLEY KUMBEMBA
and
LINDA KUMBEMBA
versus
TICHATYEI ALISON MHAZO
and
TATENDA BASILIA GONYE
and
SIMON SIMANGO
and
REGISTRAR OF DEEDS N.O.
and
SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MANZUNZU J
HARARE, 5 & 27 November 2025

CIVIL TRIAL – SPECIAL PLEA

Adv T L Mapuranga, for the Plaintiff
Adv B Maunze, for the 1st and 2nd defendants
Mr B Hwachi, for the 3rd defendant

MANZUNZU J

INTRODUCTION:

(1) The plaintiffs instituted summons against the defendants seeking certain declaratory orders and consequential relief. The 1st and 2nd defendants have raised a special plea in bar on the grounds that there is an extant court order under HCH4635/23 in which the same matter was dismissed and that the claim has prescribed. The first special plea in bar revolves around the interpretation of the provisions of Practice Direction No. 1 of 2025.
(2) I allowed argument on the first special plea in bar.

BACKGROUND

The background facts of this matter are largely common cause. I will give a brief summary.

(3) On 12 July 2023 the plaintiffs, in a court application against the defendants, save the last defendant who is sued in his official capacity, sought certain declaratory orders and consequential relief.

(4) The cause of action in the two matters arise from the same set of facts in that the 1st and 2nd defendants had allegedly fraudulently taken transfer of a certain property owned by the plaintiffs through the aid of the 3rd defendant acting as a conveyancer.

(5) The relief that was sought under HCH4635/23 was essentially a declaration that the transfer to the 1st and 2nd defendants was null and void, that they be evicted from the property and that the plaintiffs be declared as owners of the property.

(6) The application under HCH4635/23 was opposed with the defendants (the respondents therein) successfully taking a preliminary point that there were material disputes of fact. The application was converted into an action by the order of this court on 12 April 2024.

(7) HCH4635/23 was dismissed on 27 May 2025 in terms of paragraph 4 of Practice Direction No. 1 of 2025 because it had remained inactive for an unreasonable period.

(8) On 4 September 2025 the plaintiffs caused a summons to be issued seeking essentially the same relief as the one in the dismissed case.

ISSUES

(9) The court is called upon to answer the question; Is a party whose matter has been dismissed in terms of Practice Direction 1 of 2025 allowed to reinstitute the action or is compelled to apply for its reinstatement.

PARTIES'POSITIONS

(10) The plaintiffs took the position that it is permissible for a party whose matter has been dismissed in terms of the Practice Direction to file a fresh action. A contrary view was taken by the 1st and 2nd defendants who maintained that the only option was to apply for the reinstatement of the matter.

SUMISSIONS BY COUNSELS

(11) Both counsels admitted that this was not a special plea of re judicata. Certainly not, because the matter was not dismissed on the merits.

(12) What then is the name of this special plea. Mr Mapuranga for the plaintiffs said it has no name and as such that was unusual. Mr Maunze could also not give it a name except to say it was akin to *lis pendens*. So the court must accept it is nameless.

(13) Mr Mapuranga's argument was that despite the special plea being nameless, the plaintiffs did not circumvent the provisions of the Practice Direction in that a party whose matter has been dismissed has three options to take. The first is to do nothing. The second is to apply to reinstate. The third is to refile the action.

(14) Mr Maunze's argument was that where a matter is deemed dismissed the remedy lies with paragraph 5.1 and 5.2 of the Practice Direction. I agree with Mr Maunze only to the extent that, if a party has chosen the reinstatement route.

(15) The cardinal question to ask is whether the remedy in paragraph 5 closes the door to a party who may wish to pursue other options other than reinstatement. In my view, which view I hold strongly to be correct, it does not.

(16) There was a fight over the scope of the cause of action. To me it matters not that the issue of damages was introduced in the current case nor that there is an additional defendant.

(17) The court can exercise a discretion to dismiss a matter in terms of paragraph 4 of the Practice Direction. Where a matter is so dismissed, it has been admitted, it's not on the merits. This excludes the defence of *res judicata*.

(18) Paragraph 5.1 provides that any party aggrieved by the order dismissing a matter may apply for reinstatement on good cause shown. To read into this paragraph that, one cannot take any other action other than an application for reinstatement, I think, is wrong.

(19) Mr Maunze sought to rely on the case of Combined Harare Residents Association and Anor v Zimbabwe Electoral Commission and Anor HH 286/25 which case reminded the parties of the existence of a remedy in the Practice Direction. It cannot be used as authority to say a party cannot bring a fresh matter while the first one lives a dormant life.

(20) A dismissed matter under this Practice Direction is not a live case. This explains why Mr Maunze could not raise *lis pendens* as a special plea. All he could come close to was that it was akin to *lis pendens*. This is why the dismissed case can be brought to life through reinstatement.

(21) It is accepted that a practice direction is binding and has legal force and effect as argued by Mr Maunze. He cited authorities in support. The fact remains, despite the binding nature of the practice directions, Practice Direction 1 of 2025 does not prohibit a party from taking the choice to reinstitute fresh process. It provides a remedy which is optional to a party. If a party chose the remedy, then he/she must abide with the provisions of the Practice Direction.

(22) I find nothing wrong with the course taken by the plaintiffs. The special plea in bar must fail.

DISPOSITION

1. The special plea in bar on the grounds that there is an extant court order under HCH4635/23 be and is hereby dismissed with costs.

MANZUNZU J…….

Mafongoya & Matapura Law Practice, applicant's legal practitioners.
Mawere Sibanda Commercial Lawyers, 1st respondent's legal practitioners.
Nyikadzino Simango &Associates, 3rd respondent's legal practitioners.